IN THE COURT OF THE VIII ADDL. CHIEF JUDICIAL MAGISTRATE AT: HYDERABAD

PRESENT: Smt. Kavitha Karnati,
VIII Addl. Chief Judicial Magistrate,
Hyderabad.

Dated this the 20th day of March, 2025

C. C. No. 5892 OF 2024

Between:

The State through
the Sub-Inspector of Police,
Police Station Bhavani Nagar.

... Complainant

AND

A1) Mohd Mazhar, S/o. Mohd Yousuf, Age: 32 years, Occ: Driver, R/o: H.No. 18-7-198D/29, Kaveli Kaman, Talabkatta Bhavaninagar, Hyderabad.

A2) Syed Alamdar Hussain Razvi, S/o. Syed Mohammed Hussain Razvi, Age: 24 years, Occ: Rumali Roti maker, R/o: H.No. 18-7-306/60, Opp Talba Masjid, Aman Nagar B, Talabkatta, Hyderabad.

A3) Mohd Aslam @ Aslam Shah, S/o. Mohd Maqbool, Age: 30 years, Occ: Centuring work, R/o: H.No. 18-7-423/A/210, Aman nagar B, Talabkatta, Hyderabad.

A4) Syed Tipu @ Tipu, S/o. Syed Abbas, Age: 28 years, Occ: Auto driver, R/o: 18-7 -423/A/210, Aman nagar B, Talabkatta, Hyderabad.

A5) Shaik Chand @ Chand @ Body Guard, S/o. Shaik Awad, Age: 27 years, Occ: Cook/ Autodriver, R/o: Plot No. 843, Lambada Colony, Ghouse nagar, Chandrayangutta, Hyderabad.

... Accused

NOTE: The case against Accused No.3 was abated. The case against Accused Nos.1, 4 and 5 was ended on 21.06.2024 vide CC No. 5960 of 2023 before this Court.

This case was coming before me on 17-03-2025 for final hearing in the presence of Learned APPO, Sri. L. Kishan, for the State and the Learned Counsel for Accused Sri. Saleem and Smt. M. Laxmi Raj, Advocates and having heard for consideration, this court made the following:

:: J U D G M E N T ::

The Sub-Inspector of Police, Police Station Bhavani Nagar has filed charge sheet against accused for the offences punishable under Sections 506 of Indian Penal Code, Section 25(1)(B)(b) of Arms Act, Section 20(b)(A) and Section 32 of NDPS Act read with 34 of Indian Penal Code.

2. The case of the prosecution in nutshell are as follows:

On 19.01.2023 at 18:45 hours defacto-complainant lodged a report stating that, on 19.01.2023 at 03:23 hours when he was at his home, two persons came to him and Mazhar asked him that whether he wants ganja by showing one small packet of ganja, when he refused then he showed him knife and threatened him that if he disclosed to anybody that they are selling ganja, he will kill him. At some distance his cousin brother Faisal was standing then he called him, with his help he tried to catch them, they escaped from there by leaving their blue colour activa on the spot, this Activa does not have number plate on it. He kept that Activa vehicle along with him as he thought they will come to him for collecting their vehicle. When they didn’t come back, then he came along with that Activa to Police Station.

Earlier also he came to his uncle's Pan shop at Beebee Bazar X road and threatened them also. Hence, the report.

3. Basing on the contents of the report, LW-13/Mohd. Amjad Ali, the then Inspector of Police, Police Station Bhavani Nagar has registered the case in Crime No. 14 of 2023 for the offences punishable under Sections 506 of Indian Penal Code, Section 25(1)(B)(b) of Arms Act, Section 20(b)(A) and Section 32 of NDPS Act read with 34 of Indian Penal Code and took up the investigation. After completion of investigation he has filed charge sheet for the said offences against Accused Nos.1 to 5.

4. The Court has taken cognizance for the offences punishable under Sections 506 of Indian Penal Code, Section 25(1)(B)(b) of Arms Act, Section 20(b)(A) and Section 32 of NDPS Act read with 34 of Indian Penal Code.

5. On service of summons, Accused No.2 was appeared before the court, after compliance of Section 207 Cr.P.C, he was examined under section 239 Cr.P.C for the offences punishable under Sections 506 of Indian Penal Code, Section 25(1)(B)(b) of Arms Act, Section 20(b)(A) and Section 32 of NDPS Act read with 34 of Indian Penal Code, to which he denied and the charges were framed for the said offences, read over to him in vernacular, to which he pleaded not guilty claimed to be tried. Hence, trial proceeded.

6. So as to bring home the guilt of the accused, prosecution has examined PW1 to PW8 and got exhibited Exs.P1 to Ex.P10, on behalf of prosecution.

6.1. On behalf of the prosecution LW-1/Shaik Aijaz/defacto-complainant was examined as PW1, LW-3/Mohd Imran and LW-4/Mohd Fahad Khan/panch witnesses for crime details form were examined as PW2 and PW3 respectively, LW-6/Shaik Ahsan Amoodi and LW-5/Mohd Rafeeq/panch witnesses for confession panchanama of Accused Nos.1 and 2 were examined as PW4 and PW7 respectively, LW-8/Shaik Ishaq and LW-7/E. Saikiran/panch witnesses for further confession panchanama of Accused No.1 were examined as PW5 and PW6 respectively and LW-13/Mohd Amjad Ali/Investigation Officer was examined as PW8. The Learned APPO has given up the evidence of LW-2/Syed Faisal/eye-witness, basing on the report filed by the concerned police, as such his proposed evidence was treated as nil. The learned APPO has given up the evidence of LW-9/G. Dharneetha/Assistant director, TSFSL, LW-10/Naresh, LW-11/A. Srinivas and LW-12/Y. Venkattappa/who assisted PW8, as such their proposed evidence was treated as nil.

6.2. On behalf of the prosecution, Ex.P1 is signature of PW1 on report dated: 19.01.2023, Ex.P2 is 161 Cr.P.C. statement of PW1, Ex.P2 is signature of PW2 on crime details form, Ex.P3 is signature of PW3 on crime details form, Ex.P4 is signature of PW4 on confession panchanama of Accused Nos. 1 and 2, Ex.P5 is signature of PW7 on confession panchanama of Accused Nos.1 and 2, Ex.P6 is FIR, Ex.P7 is crime details form along with rough sketch, Ex.P8 is relevant portion of seizure in confession cum seizure panchanama of Accused No.1, Ex.P9 is relevant portion of seizure in confession cum seizure panchanama of Accused No.2 and Ex.P10 is FSL report, were marked.

NOTE: Ex.P2 is marked twice.

7. On behalf of the accused, no documents were marked.

8. After closure of the prosecution evidence, accused were examined under section 313 of Cr.P.C, for which they denied and reported no defence evidence.

9. Heard both sides. Perused the record.

10. Now the Points arise for my determination are:

1. Whether the Prosecution could prove the guilt of Accused for the offences punishable under Sections 506 of Indian Penal Code, Section 25(1)(B)(b) of Arms Act, Section 20(b)(A) and Section 32 of NDPS Act read with 34 of Indian Penal Code, beyond reasonable doubt?

2. To what result?

11. **POINT No. 1**: The prosecution has examined PWs 1 to 8, among them PW1 is defacto-complainant, PW2 and PW3 are panch witnesses for crime details form, PW4 and PW7 are panch witnesses for confession panchanama of Accused Nos.1 and 2, PW5 and PW6 are panch witnesses for further confession panchanama of Accused No.1 and PW8 is investigation officer. PWs 1 to 5 and 7 did not support the prosecution case, as such they were treated as hostile witnesses by the learned APPO, with the permission of the court and examined them in cross but nothing was elicited against their version. PW6 is panch witness for further confession panchanama of

Accused No.1 has deposed that Accused No.1 has confessed about the commission of offence in his presence and police has drafted panchanama and also obtained his signatures on it. Nothing specific was elicited in his cross-examination.

12. PW8 is Investigation Officer, who has conducted the investigation in this case has deposed the manner of investigation done by him. Except the evidence of PW8 there is no incriminating evidence on record against accused. Prosecution failed to establish the case against accused for the offences under which they were charged. The evidence of PW8 is requires corroboration from the other independent material prosecution witnesses. The prosecution has failed to prove the seizure of case property through its witnesses as alleged. The prosecution failed to prove the scene of offence and the prosecution also failed to get examine all the witnesses who are cited in the charge sheet to establish the case against accused. It is settled principle of law that when the prosecution failed to prove all the terms of charges framed against the accused beyond reasonable doubt, the benefit of doubt shall be given to accused. Thus, the prosecution failed to establish the guilt of accused for the offences under which he was charged. Hence, the Accused No.2 is entitled for acquittal under benefit of doubt. Accordingly, the point is answered.

13. <u>POINT NO.2</u>: In the result, Accused No.2 is found not guilty for the offences punishable under Sections 506 of Indian Penal Code, Section 25(1)(B)(b) of Arms Act, Section 20(b)(A) and Section 32 of NDPS Act read with 34 of Indian Penal Code, accordingly he is acquitted under Section 248 (1) of Cr.P.C. for the said offences. The bail bonds of the Accused No.2 if any shall stands discharged after expiry of appeal period. The unmarked case property two wheeler shall be returned to its owner,

after due verification and obtaining acknowledgment after expiry of appeal time. The remaining unmarked case property covered under Item Nos. 1 to 3, shall be destroyed after expiry of appeal time.

Typed directly on my dictation by Kum. D. Sindhu, Junior Assistant, corrected and pronounced by me in the open court on this the 20th day of March, 2025.

VIII ADDL. CHIEF JUDICIAL MAGISTRATE
HYDERABAD

APPENDIX OF EVIDENCE
WITNESSES EXAMINED

FOR PROSECUTION:

PW-1: Shaik Aijaz/defacto-complainant

PW-2: Mohd Imran/panch witness for crime details form

PW-3: Mohd Fahad Khkan/panch witness for crime details form

PW-4: Shaik Ahsan Amoodi/panch witness for confession panchanama of Accused Nos.1 and 2

PW-5: Shaik Ishaq/panch witness for further confession panchanama of Accused No.1

PW-6: E. Sai kiran/panch witness for further confession panchanama of Accused No.1

PW-7: Mohd Rafeeq/panch witness for confession panchanama of Accused Nos.1 and 2

PW-8: Mohd Amjad Ali/Investigation Officer

FOR DEFENCE

-NONE-

EXHIBITS MARKED

FOR PROSECUTION:

Ex.P1: Signature of PW1 on report dated: 19.01.2023,

Ex.P2: 161 Cr.P.C. statement of PW1,

Ex.P2: Signature of PW2 on crime details form,

Ex.P3: Signature of PW3 on crime details form,

Ex.P4: Signature of PW4 on confession panchanama of Accused Nos. 1 and 2,

Ex.P5: Signature of PW7 on confession panchanama of Accused Nos.1 and 2,

Ex.P6: FIR,

Ex.P7: Crime details form along with rough sketch,

Ex.P8: Relevant portion of seizure in confession cum seizure panchanama of Accused No.1,

Ex.P9: Relevant portion of seizure in confession cum seizure panchanama of Accused No.2,

Ex.P10: FSL report.

NOTE: Ex.P2 is marked twice.

FOR DEFENCE:

- Nil -

Material Objects Marked

-NIL-

VIII ADDL. CHIEF JUDICIAL MAGISTRATE
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